

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Dever	Team: Team # 1	CCRB Case #: 200105180	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 07/05/2001 8:55 AM	Location of Incident: In front of § 87(2)(b) at § 87(2)(b)	18 Mo. SOL 1/5/2003	Precinct: 90
Date/Time CV Reported Thu, 07/05/2001 6:00 PM	CV Reported At: IAB	How CV Reported: Mail	Date/Time Received at CCRB Thu, 07/12/2001 11:17 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Brunetti	23559	918633	PBBN SC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Patrick Conley	00861	885427	PBBN SC
2. DTS Patrick Crosby	06696	914739	PBBN SC
3. POM Joseph Faello	25801	919019	PBBN SC
4. POM Robert Carter	28093	903576	090 PCT
5. POM George Buonocore	29436	915373	090 PCT
6. SGT David Perez	03806	904777	090 PCT
7. POM Carlos Jimenez	18696	896899	090 PCT
8. POM Manuel Castillo	04173	904264	090 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Brunetti	Force: Police Officer Joseph Brunetti used physical force against § 87(2)(b)	A . Substantiated
B . POM Joseph Brunetti	Discourtesy: Police Officer Joseph Brunetti spoke obscenely and/or rudely to § 87(2)(b)	B . Unsubstantiated

Synopsis

On 7-5-01 complainant § 87(2)(b) reported to IAB that an officer used physical force, a chokehold and discourteous language against him. The complainant and witness testimony indicates that PO Joseph Brunetti was holding § 87(2)(b) by the neck while attempting to control him. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) it will be recommended that the physical force allegation be closed as substantiated. § 87(2)(g)

§ 87(2)(b) it will be recommended that the discourtesy allegation be closed as unsubstantiated.

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b) Hispanic male. § 87(2)(b)

§ 87(2)(b). § 87(2)(b)

§ 87(2)(b) He told the undersigned that his real name is § 87(2)(b) and he also uses the alias § 87(2)(b). § 87(2)(b)

§ 87(2)(b)

Sergeant Patrick Delaney and Sergeant Richard Rudolph of IAB interviewed § 87(2)(b) on 7-5-01. § 87(2)(b) stated that he was walking with PO Brunetti and showed him some locations where guns were. § 87(2)(b) ran from the officer because he did not want to go to jail. He ran one block. When PO Brunetti caught up to him, PO Brunetti grabbed him by his neck. He ran inside a store and grabbed a candle and tried to keep the officer away from him with it. § 87(2)(b) states that he dropped the candleholder once PO Brunetti grabbed him. PO Brunetti grabbed him by the neck and began choking him. PO Brunetti had his knee in his back. § 87(2)(b) told PO Brunetti that he could not breathe. PO Brunetti was pulling his own arm up against his neck. § 87(2)(b) was trying to pull PO Brunetti's arm off of his neck. In response, PO Brunetti pulled § 87(2)(b)'s arm up against his neck even tighter. § 87(2)(b) began spitting blood and saliva. § 87(2)(b) was handcuffed by a uniformed officer and he states that he still could not breathe. PO Brunetti did not have handcuffs. § 87(2)(b) complained of pain in his neck and chest. He was not struck after he was handcuffed. An ambulance was called. When asked if he had any medical conditions, he stated that he had trouble breathing at times but felt worse after PO Brunetti choked him. § 87(2)(b) has scrapes on his knees from when he was thrown to the ground and choked. A civilian who was standing on the street was telling PO Brunetti to let him go and PO Brunetti told the man that he was a cop.

§ 87(2)(b) was interviewed by the undersigned investigator at Rikers Island on 8-9-01. He states that on 7-5-01, he was arrested in the 75th Precinct § 87(2)(b)

§ 87(2)(b) at 3:30 PM. No physical force was used against him. He was spoken to by three detectives at the 75th Precinct. They asked him if he knew anything about guns. § 87(2)(b) said yes and they told him that if he helped them he would be let go. At 8:00 AM, they took him out of the precinct. The detectives wanted him to show them where the guns were. They put him in a yellow unmarked Caprice that looked like a cab. § 87(2)(b) was handcuffed and sitting in the back of the car with PO Brunetti. Two other detectives were in the front.

They arrived at one location at § 87(2)(b) and § 87(2)(b) in the Breukelen projects. PO Brunetti uncuffed him and told him not to “bullshit” him and try to run. PO Brunetti also took off his badge and handcuffs and left them in the car. § 87(2)(b) went in the building with PO Brunetti and showed him the first apartment where the guns were being sold. PO Brunetti then brought him back to the car and handcuffed him. PO Brunetti told him that if he showed him a second place, he would let him go. They went to another place and PO Brunetti uncuffed him again and showed him another apartment, in a project on § 87(2)(b). PO Brunetti told him that he was not supposed to be doing this, but he trusted him. When they got outside, § 87(2)(b) asked PO Brunetti if he could go. PO Brunetti told him that they were not going to let him go and grabbed his right arm. PO Brunetti grabbed then § 87(2)(b)'s left arm and put it around his neck in a headlock. § 87(2)(b) told the officer to stop grabbing him and began to struggle. PO Brunetti grabbed his neck even tighter and he began to cough up blood and saliva. He was in the chokehold for about three or four minutes. A Spanish man from a store near the area told the officer to let him go because he was coughing up blood. PO Brunetti asked a woman at the scene to call police. § 87(2)(b) began to lose consciousness. The other two detectives arrived and began to pat him in the chest, telling him to wake up. 90th Precinct officers and an ambulance arrived. An oxygen mask was put on his face and he received pills for neck pain and he had scratches to his legs. He was taken to § 87(2)(b). § 87(2)(b) signed a verification form attesting to the truth of his testimony using what he stated was his real name, § 87(2)(b).

Results of Investigation

Witness Accounts

§ 87(2)(b) was arrested with § 87(2)(b) on 7-5-01 in the 75th Precinct.

§ 87(2)(b) was interviewed at the Brooklyn House of Detention on 8-9-01. He states that he was taken to the 75th Precinct with § 87(2)(b). He saw § 87(2)(b) the next day with blood on his shirt. § 87(2)(b) told him that an officer had choked him. § 87(2)(b) did not see § 87(2)(b) with any injuries or blood on his shirt before he was arrested.

§ 87(2)(b) signed a verification form attesting to the truth of his testimony using what he stated was his real name, § 87(2)(b).

§ 87(2)(b) is a § 87(2)(b) Puerto Rican male. § 87(2)(b). He was identified as one of the 911 callers on the Sprint Printout. He was looking out an open § 87(2)(b) window of § 87(2)(b).

§ 87(2)(b) was interviewed at § 87(2)(b) in Brooklyn on 12-14-01. He states that he was looking out his § 87(2)(b) window when he saw a man who would later be identified as § 87(2)(b) run into a store and PO Brunetti run in after him. About five minutes later, he saw PO Brunetti pull § 87(2)(b) out of the store by the neck. One arm was around § 87(2)(b)'s neck, the other was holding § 87(2)(b)'s arm behind his back. § 87(2)(b) states that he had an unobstructed view of what was happening in front of the store. His window is about forty feet from the area where the struggle was occurring. Both § 87(2)(b) and PO Brunetti fell to the ground and they began struggling. § 87(2)(b) was telling PO Brunetti to let him go because he was choking him. PO Brunetti told him that he would let him go, but he had to stand still. § 87(2)(b) was on his stomach and kept trying to get up. PO Brunetti was still holding § 87(2)(b) by the neck, trying to keep him down. PO Brunetti told some civilians at the scene that he was a police officer and to call 911. § 87(2)(b) told them that he was being robbed by PO Brunetti.

§ 87(2)(b) told his wife to call 911. Uniformed officers arrived and the officer still had § 87(2)(b) by the neck. PO Brunetti finally let § 87(2)(b) go and he was handcuffed. A yellow cab that appeared to be an undercover police car was also at the scene. The officers tried to pick the man up, but he went limp and appeared to be unable to stand. An ambulance arrived and at that point, § 87(2)(b) went downstairs. When he arrived on the street, he saw water and bubbles coming out of § 87(2)(b)'s mouth. He was put in the ambulance and taken away.

§ 87(2)(b) asked the store clerk what happened. The clerk said that § 87(2)(b) came in running and PO Brunetti pulled him out.

§ 87(2)(b) is a § 87(2)(b) Dominican male who has worked at § 87(2)(b). He was identified as a result of a canvass done on 12-18-01.

§ 87(2)(b) was interviewed by Sergeants Delaney and Rudolph of IAB on 7-5-01. § 87(2)(b) stated that he § 87(2)(b) ran inside the store he was working in and PO Brunetti entered after him. § 87(2)(b) picked up a candle and threatened PO Brunetti with it. PO Brunetti then grabbed § 87(2)(b) and dragged him outside of the store where he was handcuffed by uniformed officers. § 87(2)(b) did not see PO Brunetti strike § 87(2)(b).

§ 87(2)(b) was interviewed at § 87(2)(b) in Brooklyn on 12-14-01. He states that he was working behind the counter in the bodega when he saw § 87(2)(b) run to the back of the bodega, followed by PO Brunetti, who said he was a police officer. PO Brunetti attempted to pull him out of the store. § 87(2)(b) grabbed a candlestick from his store and tried to hit the officer with it. The officer took it from him and pulled him outside the bodega. When PO Brunetti was pulling § 87(2)(b) out of his store, he had his arm around § 87(2)(b)'s neck. § 87(2)(b)

physically showed investigator how the officer pulled the man from the store. He placed his arm around investigator's neck demonstrating a chokehold. § 87(2)(b) asked § 87(2)(b) to call the police. PO Brunetti also told § 87(2)(b) to call them and told him he was an officer. § 87(2)(b) heard § 87(2)(b) say that he had asthma and heard him breathing heavily. § 87(2)(b) states that he did not see what happened outside because he was tending to business inside the bodega. Uniformed police arrived in a short time.

After they went outside, PO Brunetti took a bottle of water from his store and also took the candlestick. § 87(2)(b) did not see saliva coming out of § 87(2)(b)'s mouth when he was being pulled out of the store. He was put on a stretcher and taken away by ambulance.

§ 87(2)(b) is a paramedic for the FDNY. He responded to the call for paramedics on 7-5-01 and treated § 87(2)(b).

Paramedic § 87(2)(b) was interviewed at the CCRB on 1-9-02. He states that on 7-5-01 § 87(2)(b), he and his partner, Paramedic § 87(2)(b) received a call for a difficult breather on § 87(2)(b). Paramedic § 87(2)(b) was the technician and § 87(2)(b) was the driver. The technician is primarily responsible for the care of the patient in the back of the ambulance. When they arrived, § 87(2)(b) was either on the ground or on a car, and was handcuffed. He was face down with his head turned sideways. An officer explained to Paramedic § 87(2)(b) that § 87(2)(b) had been arrested, had run from the police and had to be subdued a second time. § 87(2)(b) had told the police that he was an asthmatic and was having trouble breathing. Upon examining him in the ambulance Paramedic § 87(2)(b) found no evidence of difficulty breathing. § 87(2)(b) was not wheezing and he was coherent, talking in full sentences. His expiration was normal and his lungs were full. Paramedic § 87(2)(b) told him that he would have to go to the hospital because he made the claim that he was short of breath. § 87(2)(b) never claimed to have been choked or abused by police officers. Paramedic § 87(2)(b) did not see any red marks or injuries on his neck. § 87(2)(b) did tell him that he was wrestled down by the officer. Paramedic § 87(2)(b) looked for bruising and found none. He also did not see the man coughing up saliva or bubbles. § 87(2)(b) was slightly agitated, possibly because he had been arrested. Paramedic § 87(2)(b) also does not remember § 87(2)(b) coughing because if he was coughing, he would not have said that the man was speaking in full sentences because that is difficult while coughing.

They arrived at § 87(2)(b) and presented the patient to the nurse. The nurse examined him and concurred that § 87(2)(b) was not having an asthma attack and there was no evidence of difficulty breathing. He was using his normal chest muscles and was not hyperventilating.

Officer Accounts

Sergeant Patrick Conley, Detective Patrick Crosby and Police Officers Joseph Brunetti and Joseph Faello are assigned to the Brooklyn North Street Crimes Unit.

Sergeant David Perez was the 90th Precinct Patrol Supervisor on 7-5-01. Police Officers Manuel Castillo and Carlos Jiminez were assigned to sector JK within the confines of the 90th Precinct. Police Officers Robert Carter and George Buonocore were assigned to sector CD.

PO Joseph Brunetti was interviewed at the CCRB on 8-31-01. He states that on 7-5-01, § 87(2)(b) was arrested in the 75th Precinct § 87(2)(b). § 87(2)(b) told PO Brunetti that he knew where guns were sold. PO Brunetti and Sergeant Conley spoke to him about that in the 75th Precinct. They took § 87(2)(b) out to the field so he could point out the location and they could get a search warrant. PO Brunetti took § 87(2)(b) out in a yellow cab with Sergeant Conley and PO Faello. Sergeant Conley drove them to a project in the 90th Precinct. On the way, § 87(2)(b) told PO Brunetti that he smoked marijuana with the man who sold guns. PO Brunetti told § 87(2)(b) that he would given court consideration for his cooperation and that was the extent of their conversation. Sergeant Conley ordered PO Brunetti to uncuff § 87(2)(b) because taking him to the location in handcuffs would reveal him to be a police officer. PO Brunetti had to take off his vest, radio and handcuffs. PO Brunetti and § 87(2)(b) walked to the § 87(2)(b) floor and § 87(2)(b) pointed out an apartment. They left the building and walked back to the car. PO Brunetti handcuffed § 87(2)(b) again and put him back in the car. § 87(2)(b) then told them that he knew of another location where guns were sold. They went to the location, and PO Brunetti uncuffed § 87(2)(b) and again took him inside a project building. § 87(2)(b) pointed out an apartment and they went downstairs. When they got outside the building, § 87(2)(b) took off running. PO Brunetti chased him for about four blocks. § 87(2)(b) ran into a bodega. PO Brunetti ran after him and caught up to him in the front of the store. § 87(2)(b) grabbed a candleholder from the store and swung it at him. PO Brunetti grabbed § 87(2)(b) by his waist and § 87(2)(b) struck him in the back with the candleholder. PO Brunetti was not injured. They both fell in a struggle and rolled out of the store. § 87(2)(b) was flailing his arms and swinging saying, "Let me go motherfucker!" PO Brunetti was telling him to stay down on the ground. At no point did he grab § 87(2)(b) around the neck. He held him from his waist and wrist. PO Brunetti states that § 87(2)(b) rolled on top of him and then he rolled on top of § 87(2)(b).

Uniformed officers arrived in two to three minutes. § 87(2)(b) continued to struggle and say "Let me go!" When Sergeant Conley arrived, § 87(2)(b) began to "play possum" and fake being injured. He went limp. Paramedics were called and Paramedic § 87(2)(b) told PO Brunetti that there was nothing wrong with § 87(2)(b) and his vital signs were normal. § 87(2)(b) had no physical injuries on him.

PO Joseph Faello was interviewed at the CCRB on 9-6-01. He states that after he and Sergeant Conley dropped off PO Brunetti and § 87(2)(b) they heard a 10-85 come over the radio at § 87(2)(b). When they arrived there, they saw § 87(2)(b) in handcuffs, lying on the ground on his side. Sergeant Conley asked § 87(2)(b) if he was alright. § 87(2)(b) mumbled a response, he seemed out of it. PO Faello did not see him spit blood or saliva. § 87(2)(b) appeared to be out of

breath and was breathing heavily. 90th Precinct officers were moving him around and Sergeant Conley was rubbing his chest to help him breathe better. PO Brunetti was also out of breath and was off to the side. PO Brunetti was not having any interaction with § 87(2)(b) at the scene when he arrived. PO Faello went with § 87(2)(b) in the ambulance to § 87(2)(b).

Sergeant Patrick Conley was interviewed at the CCRB on 9-7-01. He states that when § 87(2)(b) and PO Brunetti were returning to the car from the second location, he hid behind a building to avoid blowing his cover. When he looked again, § 87(2)(b) and PO Brunetti were gone. On division radio, he and PO Faello heard a call regarding a plainclothes officer struggling with a civilian. They responded to the location and saw numerous uniformed units there. § 87(2)(b) was handcuffed and was lying on his back. His breathing was somewhat shallow and he did not respond when he tried to talk to him and wake him up. He had PO Faello get a bottle of water for him. Sergeant Conley asked PO Brunetti if he had grabbed § 87(2)(b)'s neck and he said that he had not. He may have coughed up saliva. PO Faello got a bottle of water for him. Sergeant Conley called for an ambulance.

Sergeant Conley interviewed two employees of the bodega who stated that § 87(2)(b) tried to strike PO Brunetti with a candleholder. § 87(2)(b) was taken to § 87(2)(b). Sergeant Conley spoke to employees of the bodega and then went to § 87(2)(b). At the hospital, the medical personnel there told him that they felt that § 87(2)(b) was faking his injuries. They added that there was no reason for him to be non-responsive except not wanting to respond.

Detective Patrick Crosby was interviewed at the CCRB on 8-30-01. He arrested § 87(2)(b) in the early morning of 7-5-01 in the 75th Precinct. He did not go into the field with § 87(2)(b) and the officers. He stayed in the 75th Precinct and completed the arrest paperwork.

PO Carlos Jiminez was interviewed at the CCRB on 1-4-02. On 7-5-01, he was working a sector with PO Manuel Castillo. He states that he does not remember responding to § 87(2)(b) the location of incident.

Sergeant David Perez was interviewed at the CCRB on 1-4-02. He was the Patrol Supervisor on 7-5-01. He does not remember responding to a call regarding two males fighting at the location of incident. According to the Roll Call, Sergeant Perez was working with PO Keith Carson.

PO Manuel Castillo was interviewed at the CCRB on 1-9-02. He states that on 7-5-01, he responded to a 10-85 at the corner of § 87(2)(b) and § 87(2)(b) with PO Jiminez. When he arrived, PO Brunetti had § 87(2)(b) in handcuffs. Other marked units were there. He did not see § 87(2)(b) struggling and does not remember what position he was in. Everything was under control and the patrol supervisor ordered him to resume patrol.

PO Robert Carter was interviewed at the CCRB on 1-9-02. He was working a sector with PO Buonocore on 7-5-01. PO Carter states that when he arrived at the scene, a plainclothes street crime officer had one man in custody. Everything was under control, so the Sergeant told them to resume patrol.

PO George Buonocore was interviewed at the CCRB on 1-9-02. He states that when he and PO Carter arrived at the scene, PO Brunetti told him that everything was alright. § 87(2)(b) was not spitting up saliva and did not complain of being choked.

Medical Documents

§ 87(2)(a) PBH §18(6)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Police Documents

The Online Booking Sheet for § 87(2)(b) states that on 7-5-01, he was arrested at 4:30 AM § 87(2)(b) in the 75th Precinct. Detective Crosby was the arresting officer. § 87(2)(b) was § 87(2)(b)'s co-defendant.

The supplemental OLBS lists charges resulting from the second arrest of § 87(2)(b). He was also charged § 87(2)(b). The narrative reads, "At tpo deft. did swing glass candle holder at MOS head while attempting to escape custody injuring MOS back." PO Brunetti was the arresting officer.

The Sprint Printout indicates that at 8:54 AM, a civilian called 911 from § 87(2)(b) at § 87(2)(b) § 87(2)(b) of § 87(2)(b) called 911 at 8:56 AM. The Patrol Sergeant arrived at 8:56 AM and sector C arrived at 8:57 AM. At 8:58, the central announced that the street crime unit had one person in custody and requested an ambulance to respond regarding the prisoner having difficulty breathing.

Another call for an ambulance was put over at 8:59 AM. At 9:01 and 9:03 AM, urgent calls were put over the radio for an ambulance.

IAB took two Polaroid photographs of § 87(2)(b) on 7-5-01 at 6:00 PM. One is of his face and another is of his neck. Neither show any injuries.

A “glass candle holder with purple candle” was vouchered at the 90th Precinct under number § 87(2)(b)

Prior Bad Acts

PO Brunetti has no prior cases on his CCRB history in his four years with the NYPD.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

The BADS system lists no arrests for § 87(2)(b) or § 87(2)(b) for the past five years.

Lawsuit

Investigator checked with the Corporation Counsel's office on 3-21-02 and found that no lawsuits had been filed regarding an incident on 7-5-01 under names § 87(2)(b) or § 87(2)(b)

Conclusions and Recommendations

Patrol Guide Procedure 203-11 states that "Members of the New York City Police Department will NOT use chokeholds. A chokehold shall include, but is not limited to, any pressure to the throat or windpipe, which may prevent or hinder breathing or reduce intake of air." In *Department of Corrections v. Robinson* OATH Index 560/93 (1993) an administrative law judge ruled that the common definition of the word "choke" should be used to judge officers, which is "[to] interfere with the respiration of, by compression or obstruction of the larynx or trachea." § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) are both independent witnesses with no criminal records § 87(2)(g)

They do not accuse PO Brunetti of punching or kicking § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)
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§ 87(2)(g)
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§ 87(2)(g)
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[Redacted]
[Redacted]
[Redacted]
[Redacted]

Neither Paramedic § 87(2)(b) nor the medical records indicate that § 87(2)(b) suffered any injury. In addition, photographs taken by IAB the day of the incident reveal no visible injury. § 87(2)(g)

[Redacted]
[Redacted]

Despite the lack of injury, the officers on scene were concerned enough about § 87(2)(b)'s condition that Sergeant Conley rubbed his chest, ordered PO Faello to get him water and made four calls, two of them urgent, for an ambulance to respond to the scene. Sergeant Conley and PO Faello both told the undersigned that § 87(2)(b) was non-responsive and having difficulty breathing when they arrived at the scene. Sergeant Conley stated that he called the ambulance because he feared § 87(2)(b) might go into cardiac arrest. It is recommended that allegation A, physical force, be closed as substantiated.

Regarding the discourtesy allegation, § 87(2)(b) accuses PO Brunetti of making different profane statements in his IAB and CCRB interviews. § 87(2)(g)

[Redacted]
[Redacted] it is recommended that the discourtesy allegation be unsubstantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: